FOREIGN OFFICE, S.W.1.

FJ 10310/42.

12th February, 1952.

In your despatch No. 13 of the 16th January you sent us copies of a memorandum by Mr. Dulles, handed to you by him on the 9th January 1952, summarising recent exchanges on the subject of Japan's relations with China.

We understand from your telegram No. 361 that that memorandum was in no sense a formal communication to H.M. Embassy and that, in your view, it does not call for a reply. You were given to understand that Mr. Dulles had prepared it primarily for his own and Mr. Acheson's convenience.

In normal circumstances, the Secretary of State would not have thought it necessary to revert to Mr. Dulles's paper. But in view of Mr. Dulles's proceedings in the past on this thorny subject of Japan's relations with China, he is anxious that there should be no chance that, by refraining from comment on Mr. Dulles's paper, he will be taken to have agreed with all the statements made in it. As has been brought out by semi-official correspondence between the State Department and H.M.Embassy, and by Dening's letter to Scott of the 4th February, which I have just seen, there are passages in Mr. Dulles's memorandum which do not correspond to our own record or recollection of the facts.

The Secretary of State would therefore like you to consider whether you ought not to place it on record, in a letter to Mr. Acheson or Mr. Dulles, or in some other appropriate way, that our receipt of Mr. Dulles's paper and the absence of comment on it on our part are not to be taken as implying that it corresponds in every respect to our record or recollection of events or our outlook upon them.

I enclose notes on some of the major points that arise in Mr. Dulles's paper and leave to your discretion what use you make of these with the State Department.

Would you please let me know in due course what action you take on the present letter?

I have sent a copy of this letter to Dening.

WILLIAM STRANG

The Right Honourable
Sir Oliver Franks, G.C.M.G., K.C.B., C.B.E.

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NOTES ON MR. DULLES'S MEMORANDUM

Paragraph 2. Mr. Attlee's "counter proposal" arose in the following way. We had thought that it would be useful to follow the precedent of the Italian Peace Treaty and to have an accession clause to cover countries not signatory to the Treaty. This seemed to us at the time to be a good idea, though it had one difficulty in that either Chinese Government would then have been free to accede by a simple notification of accession. To prevent this, we proposed that a Chinese accession should not be considered valid unless accepted by a majority of the Far Eastern Commission. As Mr. Dulles notes, this proposal was however rejected.

Paragraph 3. The existence of Prime Minister Yoshida's letter of August 6th 1951 to Mr. Dulles was unknown to us and indeed our first knowledge of it was this reference in Mr. Dulles's memorandum of January 9th.

Para. 7 of San Francisco tel. No. 1 Saving of 8.9.51.

At San Francisco on September 8th, Mr. Yoshida called on Mr. Morrison and in the course of the conversation Mr. Yoshida himself raised the question of China. Mr. Morrison stated that the decision on recognition of China was a decision to be taken by the Government and people of Japan for themselves, though Mr. Morrison thought that the Japanese would be well advised to take no precipitate action. Mr. Morrison went on to say that "though the Treaty was signed it was not yet in force and it would be unwise of Japan by some hasty action in this important matter to stir up controversy in the various legislative bodies in the countries which had to ratify the Treaty". Mr. Yoshida took the point but was non-committal. Thus Mr. Yoshida gave no hint that he had already taken a decision and in point of fact we were not aware that the Japanese Government had taken a decision in this important matter until we saw Mr. Dulles's memorandum on January 9th this year.

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Paragraph 9 A record of Mr. Scott's conversation with Mr. Merchant in London was sent to the United States Embassy at the time. As it apparently had not been brought to Mr. Dulles's notice when he drafted his memorandum, an extract from that record is attached which shows not only that we were unaware that the Japanese had taken a decision but that we maintained our view that it would be unwise to influence Japan's future policy towards China before the Peace Treaty came into effect.

F.O. tel to Tokyo No. 1436 of 14.12.51

Paragraph 13. On December 14th Mr. Eden told Sir Esler Dening that he endorsed the views which the latter had expressed to Mr. Dulles and that he was considering asking Sir O. Franks to take the matter up in Washington. On the 16th Mr. Eden instructed Sir O. Franks to discuss it with Mr. Acheson and a long talk on this subject took place between them on the 18th. Sir O. Franks reported to Mr. Eden that Mr. Acheson was going to ask Mr. Dulles to suggest a compromise position and on the 19th Mr. Eden told Sir O. Franks and Sir E. Dening that he did not think we should take any further initiative until we knew what Mr. Dulles proposed. It is therefore difficult to understand the statement in paragraph 13 of Mr. Dulles's memorandum that on December 17th Sir. E. Dening received instructions not to have further conversations with Mr. Dulles, though perhaps there was some misunderstanding.

F.O. tel. to Washington No. 6119 of 16.12 Washington tel. No. 3900 of 18.12.51.

F.O. tel. to Washington No. 6181 of 19.12.51

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